

Syllabus

ARTIS *v.* DISTRICT OF COLUMBIACERTIORARI TO THE DISTRICT OF COLUMBIA COURT OF
APPEALS

No. 16–460. Argued November 1, 2017—Decided January 22, 2018

Federal district courts may exercise supplemental jurisdiction over state claims not otherwise within their adjudicatory authority if those claims are “part of the same case or controversy” as the federal claims the plaintiff asserts. 28 U.S.C. § 1367(a). When a district court dismisses all claims independently qualifying for the exercise of federal jurisdiction, it ordinarily also dismisses all related state claims. See § 1367(c)(3). Section 1367(d) provides that the “period of limitations for” refiling in state court a state claim so dismissed “shall be tolled while the claim is pending [in federal court] and for a period of 30 days after it is dismissed unless State law provides for a longer tolling period.”

When petitioner Artis filed a federal-court suit against respondent District of Columbia (District), alleging a federal employment-discrimination claim and three allied claims under D.C. law, nearly two years remained on the applicable statute of limitations for the D.C.-law violations. Two and a half years later, the Federal District Court ruled against Artis on her sole federal claim and dismissed the D.C.-law claims under § 1367(c). Fifty-nine days after the dismissal, Artis refiled her state-law claims in the D.C. Superior Court, but that court dismissed them as time barred. The D.C. Court of Appeals affirmed, holding that § 1367(d) accorded Artis only a 30-day grace period to refile in state court and rejecting her argument that the word “tolled” in § 1367(d) means that the limitations period is suspended during the pendency of the federal suit.

Held:

1. Section 1367(d)’s instruction to “toll” a state limitations period means to hold it in abeyance, *i. e.*, to stop the clock. Pp. 80–88.

(a) Statutes that shelter from time bars claims earlier commenced in another forum generally employ one of two means. First, the period of limitations may be “tolled,” *i. e.*, suspended, while the claim is pending elsewhere; the time clock starts running again when the tolling period ends, picking up where it left off. A legislature may instead elect simply to provide a grace period, permitting the statute of limitations to run while the claim is pending in another forum and averting the risk of a time bar by according the plaintiff a fixed period in which to refile.